

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUBC056394: YAZMIN ACOSTA GUZMAN vs GENERAL MOTORS LLC

09/10/2026 in Department 44

Motion for Attorney Fees/Costs for Plaintiff Yazmin Acosta Guzman

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff Yazmin Acosta Guzman’s Motion for Attorney’s Fees and Costs

Tentative Ruling:

Plaintiff Yazmin Acosta Guzman’s Motion for Attorney’s Fees and Costs is GRANTED in part.

The Court awards Plaintiff \$16,375.00 in attorney fees, representing the reasonable lodestar of 23.0 hours for Joshua M. Ullman at \$500 per hour and 7.5 hours for Jonathan W. Buxton at \$650 per hour. Defendant did not oppose the requested hourly rates. The request for a 0.3 lodestar multiplier (\$4,912.50) is DENIED.

The Court further awards Plaintiff \$612.40 in costs and expenses pursuant to Civil Code section 1794(d) and paragraph 4 of the June 1, 2026 judgment.

The total award is \$16,987.40.

Plaintiff to give notice.

I. Background

A. Factual Background

Plaintiff alleges that on April 27, 2024, she purchased a Certified Pre-Owned 2021 Cadillac CTS and that the vehicle was accompanied by express and implied warranties from Defendant General Motors LLC (GM). Plaintiff alleges that the vehicle had serious defects and nonconformities, including engine-related defects, that substantially impaired its use, value, and/or safety, and that she presented the vehicle to an authorized GM repair facility on multiple occasions without GM conforming the vehicle to warranty after a reasonable number of attempts. (Compl. ¶¶ 5, 9-13.)

Plaintiff further alleges that before filing suit she demanded replacement or restitution and GM failed or refused to provide it. (Compl. ¶¶ 20, 31.) Attorney Joshua Ullman states that Plaintiff first requested a repurchase directly from GM; after GM declined, Plaintiff retained counsel, who sent a notice under Code of Civil Procedure section 871.24 requesting repurchase. According to Ullman, GM later made a prelitigation repurchase offer, but Plaintiff believed that the offer used an incorrect mileage offset. (Ullman Decl. ¶ 3.) The merits of these allegations were not adjudicated because the matter resolved by an accepted statutory offer to compromise.

B. Procedural Background

Plaintiff filed this Song-Beverly action on December 17, 2025, asserting causes of action for breach of implied warranty and breach of express warranty. (Compl. ¶¶ 14-34.) GM answered on February 3, 2026, generally denying the allegations and asserting affirmative defenses.

Ullman states that after suit was filed GM sought the disclosures and discovery available under the then-applicable procedures, including Plaintiff's deposition, and produced more than 10,000 pages of documents and numerous audio recordings. (Ullman Decl. ¶¶ 4-5.) Plaintiff's deposition proceeded on May 8, 2026. (Ibid.; Kay Decl. ¶ 5.) GM characterizes the case as a routine Song-Beverly matter in which Plaintiff propounded no written discovery, filed no substantive motions, and performed no trial preparation. (Kay Decl. ¶¶ 9-12.)

GM served a Code of Civil Procedure section 998 offer dated May 8, 2026. The offer provided for a \$56,000 repurchase payment and gave Plaintiff an election between \$5,000 for attorney fees, expenses, and costs, or having attorney fees, expenses, and costs reasonably incurred under Civil Code section 1794(d) determined by the Court on noticed motion, with GM agreeing that Plaintiff would be deemed the prevailing party for that motion. (998 Offer ¶¶ 2, 4-5.) Plaintiff accepted the latter option on May 12, 2026.

Judgment was entered on June 1, 2026. The judgment provides that Plaintiff's attorney fees, expenses, and costs reasonably incurred under Civil Code section 1794(d) "will be determined by the Court via noticed motion" and that GM agrees Plaintiff is the prevailing party. (Judgment ¶ 4.)

On July 24, 2026, Plaintiff filed the present motion. She requests a lodestar of \$16,375.00, consisting of 23.0 hours by Ullman at \$500 per hour (\$11,500.00) and 7.5 hours by Jonathan Buxton at \$650 per hour (\$4,875.00), plus a 0.3 multiplier of \$4,912.50, for total attorney fees of \$21,287.50. She also seeks \$612.40 in costs and expenses, for a total request of \$21,899.90. (Ullman Decl. ¶ 2; Buxton Decl. ¶ 2.)

GM opposes. It asks the Court to reduce the claimed 30.5 hours by 17.8 hours, leaving 12.7 hours and a \$6,565.00 lodestar; deny the multiplier; and deny all costs because Plaintiff did not file a memorandum of costs. GM's proposed hour reductions are: 5.0 hours for prelitigation work; 0.7 hour for preparation of the complaint; 3.8 hours for document-production review; 1.7 hours for client communications; 2.5 hours for asserted clerical or administrative work and block billing; and 4.1 hours relating to the fee motion. (Opp. pp. 4-11; Kay Decl. ¶¶ 8-12.)

Plaintiff filed a reply and supplemental Ullman declaration on August 31, 2026. Ullman states that he had then spent more than three hours reviewing the opposition and preparing the reply and supplemental declaration, and anticipated at least one additional hour to review the tentative ruling and argue the motion. (Supp. Ullman Decl. ¶ 2.)

II. Preliminary Matters

A. Entitlement to Fees and Costs; Hourly Rates

Plaintiff's entitlement to a reasonable fee-and-expense award is not disputed. Civil Code section 1794(d) provides that a prevailing buyer shall recover the aggregate amount of costs and expenses, including attorney fees based on actual time expended, that the court determines were reasonably incurred in connection with commencement and prosecution of the action. Here, the accepted section 998 offer and the June 1 judgment independently resolve prevailing-party status for purposes of this motion: GM expressly agreed that Plaintiff is the prevailing party and that the Court will determine the reasonable attorney fees, expenses, and costs by noticed motion. (998 Offer ¶ 5; Judgment ¶ 4.)

GM also does not challenge the requested hourly rates of \$500 for Ullman and \$650 for Buxton. (Supp. Ullman Decl. ¶ 3.) Ullman has more than 10 years of Song-Beverly experience, including work for both consumers and manufacturers, and states that this Court recently approved his \$500 rate in a matter against GM. (Ullman Decl. ¶¶ 8-10.) Buxton has practiced since 2001, has handled thousands of lemon-law matters or claims, and states that this Court recently approved his \$650 rate in another Song-Beverly matter. (Buxton Decl. ¶¶ 3-5.) The supporting declarations and the absence of contrary evidence support the requested rates. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095-1096; *Goglin v. BMW of North America, LLC* (2016) 4 Cal.App.5th 462, 473-474.)

III. Discussion

A. Legal Standard: Civil Code Section 1794(d) and the Lodestar Method

Under Civil Code section 1794(d), the Court begins with the lodestar: the number of hours reasonably expended multiplied by the reasonable hourly rate. The statute requires the Court to determine both whether the claimed time was actually expended and whether the time and monetary charge were reasonable in light of the circumstances, including the complexity of the case, procedural demands, skill displayed, and results achieved. (*Hanna v. Mercedes-Benz USA, LLC* (2019) 36 Cal.App.5th 493, 506-507; *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 35-37.) The buyer bears the burden to establish that the fees were allowable, reasonably necessary to the litigation, and reasonable in amount. (*Goglin, supra*, at p. 470.)

The Court has broad discretion to reduce hours that are duplicative, excessive, inefficient, clerical, or otherwise not reasonably incurred. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 34, 38.) Block billing may support a reduction where it prevents the Court from determining whether particular work was compensable, but block billing does not compel an automatic reduction. (*Mountjoy v. Bank of America, N.A.* (2016) 245 Cal.App.4th 266, 279.) Conversely, a reduction should be tied to case-specific reasons rather than simply to the amount recovered or the court's view that the matter was generally routine. (*Warren, supra*, at pp. 37, 41.)

After calculating the lodestar, the Court may adjust it based on factors not already subsumed in the lodestar, including the novelty and difficulty of the questions, the skill displayed, the extent to which the litigation precluded other employment, the contingent nature of the fee, and delay in payment. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132, 1138-1139; *Serrano v. Priest* (1977) 20 Cal.3d 25, 49.) A multiplier is permissible in a Song-Beverly case, but it is not mandatory, and the same factor may not be counted both in setting the lodestar and again in applying an enhancement. (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 818-822.)

B. The Claimed Lodestar of \$16,375.00 Is Reasonable

1. Prelitigation Work

GM first seeks to eliminate 5.0 hours (\$3,250.00) incurred before the complaint was filed, arguing that such work is nonrecoverable overhead rather than work in an "action." The request is too categorical. Section 1794(d) expressly encompasses fees reasonably incurred in connection with the "commencement" as well as the prosecution of an action. The records reflect claim evaluation, review of repair and purchase documents, client communications, preparation of a statutory prefiling demand, review of GM's response, and settlement communications--work directly connected to evaluating and commencing the action that followed. (Buxton Decl. ¶¶ 2, 7 & Ex. 1; Ullman Decl. ¶ 3.) Five hours for this prefiling work is not facially excessive.

Dominguez v. American Suzuki Motor Corp. (2008) 160 Cal.App.4th 53 does not require a different result. There, the manufacturer offered full repurchase before suit, and the later action

was not needed to obtain the statutory repurchase remedy. (*Id.* at pp. 58-60.) Here, by contrast, Plaintiff filed an action, obtained a judgment deeming her the prevailing party, and GM agreed that reasonable fees incurred under section 1794(d) would be determined by motion. Plaintiff also relies on Code of Civil Procedure section 871.24(e) to characterize part of the prelitigation notice work as independently mandatory. The Court need not decide this broader proposition; the work is compensable here because it was reasonably connected to commencement of this action under Civil Code section 1794(d). No reduction is warranted on this category.

2. Complaint and Case-Initiation Work

GM seeks a 0.7-hour reduction from the time associated with preparing and filing the complaint and related initiating documents, emphasizing that Plaintiff's complaint resembles pleadings counsel uses in other Song-Beverly cases and asserting that the work should have taken only 0.5 hour. The records show approximately 1.3 hours for drafting the complaint, civil case cover sheet and summons, preparing the case for filing and service, and reviewing the conformed papers. (Buxton Decl. ¶ 2 & Ex. 1.) The use of a familiar pleading form is relevant to efficiency, but the time claimed is modest and includes filing- and service-related case-initiation tasks. On this record, GM's proposed 0.7-hour cut is not supported by a showing that the time actually claimed was unreasonable.

3. Review of GM's Disclosure Production

GM seeks to reduce by 3.8 hours the 4.8 hours it identifies as document-production review, contending that experienced lemon-law counsel should need only one hour to review standardized materials. Plaintiff presents evidence that GM's production exceeded 10,000 pages and included numerous audio recordings. (Ullman Decl. ¶ 4.) The billing records identify separate review of call recordings, communication logs, repair documents, warranty history and transaction materials, and policy and procedure materials. (Ullman Decl. Ex. 1.) The reply states that counsel focused on the portions pertinent to litigation and settlement and did not substantively review duplicative or expert-oriented material. (Reply pp. 4-5.)

The Court agrees that experience and standardized productions should reduce review time, but the claimed 4.8 hours is already a limited amount of time for the volume described. GM does not identify a narrower set of entries as unrelated to the case or show that counsel duplicated the same substantive review. The requested 3.8-hour reduction would effectively allow approximately one hour to review the entire production and recordings. The record does not support that reduction.

4. Client Communications

GM next seeks to reduce post-filing client communications from approximately 3.7 hours to 2.0 hours. The identified communications concerned disclosures, deposition preparation and scheduling, the section 998 offer, surrender logistics, prejudgment interest, and settlement-related decisions. These are ordinary attorney-client communications connected to prosecution and resolution of the action. Although each communication must remain reasonable, a total of roughly 3.7 hours over the life of this matter is not excessive on its face. Plaintiff's

counsel also represents that billing was reviewed and reduced for inefficiency. (Ullman Decl. ¶ 11; Buxton Decl. ¶ 7.) No categorical 1.7-hour reduction is warranted.

5. Asserted Clerical Work and Block Billing

GM seeks to eliminate 2.5 hours it characterizes as clerical or administrative and block billed, pointing to tasks such as deposition and mediation coordination, review of routine filings, file updates, and correspondence memorializing communications. Purely clerical tasks ordinarily should not be compensated at attorney rates. But several challenged entries combine scheduling with substantive client or opposing-counsel communications, or reflect steps needed to effectuate the accepted offer and judgment. The descriptions are sufficiently specific to permit review of the work, and the total time is small. GM does not isolate 2.5 hours of purely clerical work that can fairly be removed without also eliminating compensable legal services. The Court therefore declines the proposed across-the-board 2.5-hour reduction.

6. Fees Incurred Litigating the Fee Motion

GM challenges the time spent preparing this motion and the original estimate of three hours for reviewing the opposition, preparing the reply, reviewing the tentative ruling, and attending the hearing. Reasonable fees incurred to establish and defend a fee claim are compensable. (*Ketchum, supra*, at p. 1141; see also *Robertson, supra*, at p. 817 [fee award included fees attributable to fee motion].)

The original records reflect 4.1 hours by Ullman and Buxton to review the file, prepare the motion and supporting declarations, and assemble the billing and cost records, plus an estimated 3.0 hours for opposition/reply/hearing work. (Ullman Decl. ¶ 13 & Ex. 1; Buxton Decl. ¶ 2 & Ex. 1.) The supplemental declaration establishes that by August 31 Ullman had already spent more than three hours reviewing GM's opposition and preparing the reply and supplemental declaration, with at least one additional hour anticipated for the tentative and hearing. (Supp. Ullman Decl. ¶ 2.) Thus, the evidence now shows that the original three-hour estimate was conservative rather than speculative padding. A total of 7.1 hours for the fee motion, supporting evidence, opposition review, reply, and hearing is reasonable. No reduction is warranted.

Accordingly, Plaintiff has substantiated the claimed 30.5 hours. At the unopposed rates of \$500 per hour for Ullman and \$650 per hour for Buxton, the reasonable lodestar is \$16,375.00.

C. A Lodestar Multiplier Is Not Warranted

Plaintiff seeks a 0.3 enhancement of \$4,912.50. The contingency arrangement and delayed payment are proper considerations. (Ullman Decl. ¶ 12; Buxton Decl. ¶ 6; *Ketchum, supra*, at pp. 1132-1133.) Plaintiff also emphasizes that the final section 998 resolution was materially more favorable than GM's prelitigation offer and that GM used multiple lawyers and staff in the matter. (Ullman Decl. ¶¶ 6, 14.) These circumstances do not, however, make an enhancement necessary to provide reasonable compensation in this particular case.

The action was resolved within months of filing and did not require motion practice, trial preparation, expert litigation, or adjudication of novel legal questions. GM's own staffing does not establish that Plaintiff's counsel faced unusual difficulty, and the approximately 30.5 hours claimed by Plaintiff does not show that this matter meaningfully precluded counsel from other employment. The result was favorable, but it consisted principally of a repurchase and related monetary relief contemplated by Song-Beverly and the accepted section 998 offer. Further, the approved \$500 and \$650 hourly rates are market rates intended to compensate counsel for their experience and skill; these same considerations should not be counted again in setting an enhancement. (*Ketchum, supra*, at pp. 1138-1139; *Robertson, supra*, at pp. 821-822.)

On balance, the lodestar itself reasonably compensates counsel for the work performed and the delay and risk presented here. The request for a 0.3 multiplier is denied.

D. Plaintiff May Recover \$612.40 in Costs and Expenses

GM argues that all \$612.40 in costs should be denied because Plaintiff did not file a memorandum of costs under California Rules of Court, rule 3.1700. Ordinarily, statutory costs are claimed by verified memorandum. Here, however, the parties expressly selected a different procedure. The accepted section 998 offer permitted Plaintiff to elect to have "attorney's fees, expenses and costs" reasonably incurred under Civil Code section 1794(d) determined by noticed motion, and the resulting judgment states that those fees, expenses, and costs "will be determined by the Court via noticed motion." (998 Offer ¶ 5; Judgment ¶ 4.) Parties may stipulate to an alternative procedure for awarding costs. (Code Civ. Proc., § 1032(c); *Gorman v. Tassajara Development Corp.* (2009) 178 Cal.App.4th 44, 69-70.) GM's procedural objection therefore does not bar consideration of the cost request in this motion.

The Song-Beverly Act also authorizes recovery of both "costs" and "expenses," a formulation broader than ordinary costs under Code of Civil Procedure section 1033.5, so long as the items were reasonably incurred in connection with the action. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138; *Warren, supra*, at pp. 42-43.) Buxton identifies \$612.40 in costs and authenticates the supporting cost records. (Buxton Decl. ¶ 2 & Ex. 2.) The records consist of filing/e-filing and service expenses associated with the complaint, proof of service, and this fee motion. GM does not challenge any particular item as unnecessary or unreasonable; its objection is solely that no separate cost memorandum was filed. The \$612.40 is awarded in full.